not denied. If, then, the supreme court may create a mode of execution, when a state is defeated at law, by a state, why may not the same means be exerted, where an *individual* is successful against a state?

Again, the process act, which dictates the modes of execution to the other courts, is silent as to the supreme court; it must, therefore, be either wholly without executions, or derive them from the foregoing section of the judicial act, or adopt them, on the ground of incidental *power. The total negation of execution is obviously inadmissible; and the construction of [*427 the judicial act, which has been just insisted on, would be sufficiently efficacious. But why may not executions even spring from the will of the supreme court, as the writs of *fieri facias*, *levari facias* and *distringas* were originally the creation of courts? Such an incidental authority is not of a higher tone than that of fine and imprisonment, which belongs to every court of record, without a particular grant of it.

But what species of execution can be devised? This, though, a difficult task, is not impracticable. And if it were incumbent on me to anticipate the measures of the court, I would suggest these outlines of conduct. First, that if the judgment be for the specific thing, it may be seized: or, secondly, if for damages, such property may be taken, as, upon the principles, and under the circumstances cited from Bynkershoek, would be the ground-work of jurisdiction over a foreign prince. However, it is of no consequence, whether the conjectures be accurate or not; as a correct plan can doubtless be discovered.

Still, we may be pressed with the final question: "What if the state is resolved to oppose the execution?" This would be an awful question indeed! He, to whose lot it should fall to solve it, would be impelled to invoke the God of wisdom to illuminate his decision. I will not believe, that he would recall the tremendous examples of vengeance, which in past days have been inflicted by those who claim, against those who violate, authority. I will not believe that in the wide and gloomy theatre, over which his eye should roll, he might perchance catch a distant glimpse of the federal arm uplifted. Scenes like these are too full of horror, not to agitate, not to rack, the imagination. But at last, we must settle on this result; there are many *duties*, precisely defined, which the states must perform. Let the remedy which is to be administered, if these should be disobeyed, be the remedy on the occasion which we contemplate. The argument requires no more to be said; it surely does not requires us to dwell on such painful possibilities. Rather, let me hope and pray, that not a single star in the American constellation will ever suffer its lustre to be diminished, by hostility against the sentence of a court, which itself has adopted.

But, after all, although no mode of execution should be invented, why shall not the court proceed to judgment? It is well known, that the courts of some states have been directed to render judgment, and there stop; and that the chancery has often tied up the hands of the common law, in a like manner. Perhaps, if a government could be constituted, without mingling at all the three orders of power, courts should, in *strict theory, only [*428 declare the law of the case, and the subject upon which the execution is to be levied; and should leave their opinions to be enforced by the executive. But that any state should refuse to conform to a solemn determina-